

WORLD TRADE ORGANIZATION

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General Council
Trade Negotiations Committee

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DOHA WORK PROGRAMME – RELATIONSHIP BETWEEN THE TRIPS AGREEMENT AND THE CONVENTION OF BIOLOGICAL DIVERSITY

Appropriate action to be taken/decided by the General Council on TRIPS & CBD

*Communication from Brazil, China, Colombia, Cuba, Dominican Republic, Ecuador,
India, Indonesia, Pakistan, Paraguay, Peru, South Africa, Tanzania, Thailand, Venezuela,
LDC Group and ACP Group*

The following communication, dated 27 May 2008, is being circulated at the request of the Delegation of India.

In accordance with paragraph 39 of the Ministerial Declaration adopted on 18 December 2005 and within the consultative process on outstanding implementation issues related to the relationship between the TRIPS Agreement and the Convention on Biological Diversity and those related to the extension of the protection of geographical indications provided for in Article 23 of the TRIPS Agreement to products other than wines and spirits, the proponents of the TRIPS disclosure requirement submit the following text proposal on TRIPS - CBD relationship for inclusion in the horizontal modalities decision:

"Members agree to the inclusion in the TRIPS Agreement of a mandatory requirement for the disclosure of origin of biological resources and/or associated traditional knowledge in patent applications. Text based negotiations shall be undertaken in Special Sessions of the TRIPS Council, and as an integral part of the single undertaking, on an amendment to the TRIPS Agreement establishing an obligation for Members to require patent applicants to disclose the origin of biological resources and/or associated traditional knowledge, including Prior Informed Consent and Access and Benefit Sharing."
